

NIRMAAN TECHNOLOGIES PRIVATE LIMITED
MATERIAL CUSTOMER CONTRACT
MASTER SOFTWARE AND TECHNOLOGY SERVICES AGREEMENT
Agreement Reference: NIR-CUS-XXXX-2024

THIS AGREEMENT is entered into between:

NIRMAAN TECHNOLOGIES PRIVATE LIMITED

and

ABC DIGITAL SOLUTIONS PRIVATE LIMITED

collectively referred to as the "Parties".

1. PURPOSE

The purpose of this Agreement is to establish the terms under which Nirmaan Technologies Private Limited shall provide software development, technology services, platform implementation and related support services to the Customer.

2. SCOPE OF SERVICES

Nirmaan shall provide services including:

- Software development
- Application development
- Platform implementation
- System integration
- Technical consulting
- Cloud deployment support
- Maintenance and technical support
- Data and analytics services where applicable

3. TERM

The Agreement shall commence on 01 April 2024 and remain effective for an initial period of three years unless terminated earlier in accordance with this Agreement.

4. COMMERCIAL TERMS

The estimated annual contract value shall be:

₹1,20,00,000

Billing shall be based on agreed milestones, recurring service fees and applicable usage charges.

5. PAYMENT TERMS

Invoices shall be payable within thirty days from the date of receipt, subject to verification of services delivered.

6. INTELLECTUAL PROPERTY

Pre-existing intellectual property of either party shall remain the property of that party.

Project-specific deliverables shall be governed by the intellectual-property arrangements agreed between the Parties.

7. CONFIDENTIALITY

Each Party shall maintain confidentiality of proprietary business, technical, financial and customer information received from the other Party.

8. DATA PROTECTION

Nirmaan shall implement reasonable technical and organisational safeguards for information processed in connection with the services.

9. SERVICE LEVELS

Where applicable, Nirmaan shall provide support according to agreed service-level requirements, including response and resolution timelines.

10. WARRANTIES

Each Party represents that it has the authority to enter into this Agreement.

11. INDEMNIFICATION

Each Party shall be responsible for losses arising from its material breach of applicable contractual obligations, subject to agreed limitations.

12. LIMITATION OF LIABILITY

Except for obligations that cannot legally be limited, aggregate liability shall be subject to the contractual limits agreed by the Parties.

13. TERMINATION

Either Party may terminate the Agreement for material breach where such breach remains uncured following written notice.

14. DISPUTE RESOLUTION

The Parties shall first attempt to resolve disputes through good-faith discussions.

15. GOVERNING LAW

This Agreement shall be governed by the laws applicable in India.

16. SIGNATURES

For Nirmaan Technologies Private Limited

Authorised Signatory

Name: _____

Designation: _____

Date: _____

For ABC Digital Solutions Private Limited

Authorised Signatory

Name: _____

Designation: _____

Date: _____

=====

**MATERIAL VENDOR CONTRACT
TECHNOLOGY SERVICES AND PROCUREMENT AGREEMENT**

Agreement Reference: NIR-VEN-XXXX-2024

BETWEEN:

NIRMAAN TECHNOLOGIES PRIVATE LIMITED

AND

XYZ CLOUD SERVICES PRIVATE LIMITED

1. PURPOSE

This Agreement governs the procurement of technology infrastructure, cloud services, technical support and related services by Nirmaan from the Vendor.

2. SERVICES

The Vendor shall provide:

- Cloud infrastructure
- Hosting services
- Technical support
- Infrastructure monitoring
- Software tools
- Technical consulting
- Other agreed technology services

3. CONTRACT VALUE

Estimated annual contract value:

₹48,00,000

4. SERVICE LEVELS

The Vendor shall maintain commercially reasonable availability and support standards as agreed between the Parties.

5. INFORMATION SECURITY

The Vendor shall maintain reasonable security controls to protect confidential information and systems accessed during the performance of services.

6. CONFIDENTIALITY

All confidential technical, commercial and business information shall be protected from unauthorised disclosure.

7. INTELLECTUAL PROPERTY

Each Party shall retain ownership of intellectual property developed independently of this Agreement.

8. PAYMENT

Invoices shall generally be payable within thirty days, subject to contractual requirements.

9. WARRANTIES

The Vendor warrants that services shall be provided with reasonable skill and care.

10. TERMINATION

The Agreement may be terminated for material breach, insolvency or other circumstances specified in the Agreement.

11. DISPUTE RESOLUTION

Disputes shall initially be addressed through good-faith negotiations.

12. GOVERNING LAW

The Agreement shall be governed by applicable Indian law.

13. SIGNATURES

For Nirmaan Technologies Private Limited

Authorised Signatory

Name: _____

Designation: _____

Date: _____

For XYZ Cloud Services Private Limited

Authorised Signatory

Name: _____

Designation: _____

Date: _____

"For demonstration purposes only. These documents are not executed commercial agreements."